

25TRCP00256 25TRCP00256

County: los-angeles

Division: Civil Law and Motion

Department: E

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Case Number: 25TRCP00256 Hearing Date: July 22, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

ROMBRO

& MANLEY LLP

Plaintiff,

Case No.:

25TRCP00256

vs.

[Tentative]

Denied

ANDREW

WHITE,

Defendant.

Hearing

Date: July
22, 2026

Moving Parties: Respondent Andrew Joseph White

Responding Party: Petitioner Rombro and Manley LLP

HEARING: Motion to Vacate Judgment

The Court considered the moving,
opposition, and reply papers.

RULING

The Court denies the Motion to Vacate Judgment.

BACKGROUND

On May
16, 2025, Petitioner
Rombro and Manley LLP filed the Petition to Confirm Arbitration Award.

On December 23, 2025, the Court
entered judgment.

On June 5, 2026, Respondent filed
the Motion to Vacate Judgment.

On June 30, 2026, Petitioner filed
the Opposition.

On July 15, 2026, Respondent filed
the Reply.

LEGAL STANDARD

“The court may, upon any terms as may be just,
relieve a party or his or her legal representative from a judgment, dismissal,
order, or other proceeding taken against him or her through his or her mistake,
inadvertence, surprise, or excusable neglect...¿ [The application]¿shall be made

within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473 subd. (b).) “[W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court...[Citation.]” (Rappleyea v. Campbell (1994) 8 Cal. 4th 975, 981-82.)

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Although a trial court has the discretion to vacate the entry of a default or subsequent judgment, this discretion may be exercised only after the party seeking relief has shown that there is a proper ground for relief and that the party has raised that ground in a procedurally proper manner, within any applicable time limits.” (Cruz v. Fagor America, Inc. (2007) 146 Cal.App.4th 488, 495.) “The defendant must ... demonstrate a satisfactory excuse for not responding to the original action in a timely manner.” (Id. at 504.) Moving parties have the initial burden to prove excusable neglect by a preponderance of competent evidence. (Kendall v. Barker (1988) 197 Cal.App.3d 619, 624.)

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Code Civ. Proc., § 473 subd. (d) provides in relevant part that “[t]he court may, upon motion of the injured party...set aside any void judgment or order.” (Code Civ. Proc., § 473 subd. (d).)

Code Civ. Proc., section 473.5 permits the Court to set aside a default and default judgment when the service of a summons has not resulted in actual notice to a party in time to defend the action. Code Civ. Proc., section 473.5 requires the motion to be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect. (Code Civ. Proc., § 473.5.) The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of the following:

;

1) two years after entry of a default judgment against him or her; or

2) 180 days after service on him or her of a written notice that the default or default judgment has been entered. 22

(Code Civ. Proc., § 473.5.)

DISCUSSION

Respondent Andrew Joseph White contends that the judgment entered against him is void for lack of personal jurisdiction. Although Petitioner mailed pleadings and notices to Respondent's Manhattan Beach residence, Respondent argues that mailing is not valid service of process. He was never personally served under Code of Civil Procedure section 415.10, and substituted service was never accomplished under Code of Civil Procedure section 415.20, as no competent adult household member was served, no statutory mailing requirements were met, and no acknowledgment of receipt was executed. He further represents that he never received the arbitration demand, the Petition to Confirm Arbitration Award, the Order to Show Cause, or any other notice or communication about the proceedings, and thus had no opportunity to participate or defend.

Respondent argues that this failure of service deprived the Court of personal jurisdiction. (*Rogers v. Silverman* (1989) 216 Cal.App.3d 1114, 1121-1122; *Trackman v. Kenney* (2010) 187 Cal.App.4th 175, 180-181.) He contends that a judgment entered without proper service is void and subject to attack under Code of Civil Procedure section 473 subdivision (d). (*Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.) He separately argues that the absence of constitutionally adequate notice violated due process and independently requires that the judgment be set aside. (*Peralta v. Heights Medical Center, Inc.* (1988) 485 U.S. 80, 84-86.)

Because the judgment is void, Respondent argues that the Order Confirming Arbitration Award, the Abstract of Judgment, any Writ of Execution, and all enforcement proceedings are likewise void. He therefore requests that the Court vacate the December 23, 2025 judgment and the Order Confirming Arbitration Award, set aside any default or nonappearance, quash any Writ of Execution, cancel and expunge the Abstract of Judgment recorded against his real property, and stay all enforcement pending resolution.

In opposition, Petitioner

contends that Respondent's motion should be denied because service was proper under the governing arbitration rules, the motion is untimely, and Respondent has failed to state facts supporting relief under any applicable statute.

Petitioner argues that the fee dispute was conducted by AAA as required by the parties' written fee agreement and was governed by the AAA Consumer Rules, which permit service on a party by mail to the last known address, by email with the party's prior agreement, by personal service, or by any method allowed under the courts of the state where the party is located. (Consumer Rules AAA R-4.) Petitioner states that Respondent was served with the arbitration notices and the Demand for Arbitration by mail and email and had repeated notice of the fee dispute, the arbitration results, and the court proceedings for entry of the award and judgment. Even assuming that service of the Demand was improper or that Respondent did not receive notice of the arbitration, Petitioner argues that Respondent nonetheless had notice of the Final Arbitration Award, which the AAA mailed to both parties on April 11, 2025.

Petitioner further

argues that the motion is time-barred under the California Arbitration Act. To oppose the petition to confirm the award, Respondent was required to file a response within ten days of service of the petition. (Code Civ. Proc., § 1290.6.) Because Respondent was personally served with the petition on May 26, 2025, his response was due June 5, 2025, which Petitioner notes was one year before Respondent filed the present motion. Petitioner also contends that Respondent has not complied with Code of Civil Procedure section 473(b), because although Respondent invoked that section, he neither stated facts showing mistake, inadvertence, surprise, or excusable neglect, nor accompanied his motion with a proposed response or opposition to the petition.

Turning to

Respondent's request under Code of Civil Procedure section 473(d), Petitioner argues that Respondent has failed to state facts warranting relief from a void judgment. Petitioner's filing of a proof of service created a rebuttable presumption that service was proper. (*Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795.) Petitioner argues that Respondent's only response was a bare assertion that he was never personally served and that, because Respondent bears the burden of proof and offered no supporting facts, this hollow denial cannot rebut the presumption. (*Pacifica First National, Inc. v. Abekasis* (2020) 50 Cal.App.5th 654, 656.) Finally,

Petitioner argues that relief is unavailable under Code of Civil Procedure section 473.5 because Respondent failed to include a proposed response or opposition to the petition in his moving papers. (Code Civ. Proc., § 473.5(b)).

“The filing of a proof of service creates a rebuttable presumption that the service was proper.” (Floveyor Internat., supra, 59 Cal.App.4th 789, 795.)

On May 29, 2026, Petitioner filed proof of service showing that Respondent was served by registered process on May 26, 2025. Thus, a presumption of valid service has been created. While Respondent has filed a self-serving declaration stating that he was never served, the declaration alone will not overcome the presumption of valid service. Therefore, the Court finds that service was proper.

As to section 473.5, Respondent has not filed the required responsive pleading, nor is it clear that section 473.5 applies to petitions to confirm an arbitration award, as a petition to confirm an arbitration award is not commenced by the service of a summons. (See Code Civ. Proc., § 473.5.) Thus, as service was valid and relief under section 473.5 is unavailable, the Court cannot vacate the judgment.

Therefore, the Court denies the Motion to Vacate Judgment.